

Court No. - 36

Case :- WRIT - C No. - 38806 of 2013

Petitioner :- Priya Tiwari

Respondent :- State Of U.P. Thru Secy. And 3 Others

Counsel for Petitioner :- D.K. Mishra

Counsel for Respondent :- C.S.C.,Nripendra Mishra

Hon'ble Vineet Saran,J.

Hon'ble B. Amit Sthalekar,J.

Heard learned counsel for the parties.

The case of the petitioner is that he is the tenant in the property owned by the respondent no. 4 - Pushpa Tyagi. On the basis of the tenancy agreement for eleven months he has filed an application for grant of electricity connection which is not being accepted by the respondent-Corporation.

Sri Nripendra Mishra, learned counsel appearing for the respondent-Corporation has stated that as per the Electricity Supply Code, 2005 a tenant can apply for an electricity connection in his name only after a no objection certificate is given by the landlord. In the present case, since the petitioner has not filed any no objection certificate from the landlord for grant of electricity connection in favour of the petitioner, the relief, as prayed for in this writ petition, does not deserve to be granted.

However, we dispose of this writ petition with the direction that in case the petitioner files a valid application duly accompanied by the no objection certificate of the landlord, such application of the petitioner shall be considered and decided by the respondent-Corporation, in accordance with law.

With the aforesaid observations/directions, this writ petition is finally disposed of. No order as to costs.

Order Date :- 19.7.2013/p.s.

(B. Amit Sthalekar, J.)

(Vineet Saran, J.)